December. How could the police arrest Geelani two days before it got the phone records that 'led' them to him? This letter poses other serious problems for the prosecution's case regarding the actual date on which POTO was introduced in the case. However, the court did not 'consider it necessary to delve further' into this letter since 'no question was put to PW35—the security manager of Airtel'.[24] It further noted, 'none of the witnesses pertaining to the FIR were cross-examined'. Whatever be the legal merit of the court's judgement on Afzal, the question arises as to whether there is a moral warrant for capital punishment on the basis of a trial like this.

A Surrendered Militant

The question of moral warrant arises from another more insidious direction. Given the involuntary nature of the confession, it is pertinent to reflect on the fact that Afzal agreed to sign the document at all. Was Afzal a free agent during those early turbulent days right after the attack when he was in police custody before and after making the confession? Could he afford to refuse the recording of his confession at that stage when he had already done the rounds with the police, allegedly incriminating himself in everything that the police wanted?

These queries are compounded by the fact, as repeatedly noted in all the judgements, that Afzal is a surrendered militant. Afzal was not only supposed to report regularly to the security forces, but was also under their surveillance. How could such a person mastermind and execute such a complex conspiracy? And how could a terrorist organization rely upon such a person as the principal link for their operation? Did he enter into some arrangement with the security forces to buy his survival? Some dark answers to these questions begin to form when we look at Afzal's statement 313.

The statement 313, unlike a confession under POTA, is made by an accused before the court rather than before a police officer; also, this statement is made when an accused is in judicial custody, not in police custody. The special judge of the POTA court recorded the fact that 'a surrendered terrorist has to mark his attendance with regular intervals at the STF, J&K'[25] (para 222). 'STF, J&K' stands for State Task Force, Jammu and Kashmir, a shadowy counter-insurgency outfit of the state. To our knowledge, this fact is